DEED - BARGAIN AND SALE (Covenant as to Grantor's Acts)
IND. TO IND. OR CORP - Plain Language

Prepared by:(Printers signer's name below signature)
Nancy F. Goldstein, Esquire

DEED

THIS DEED is made on August 23, 2016 and delivered on May 8, 2017

BETWEEN 86 Spruce Street, LLC

whose address is 86-88 Spruce Street, Princeton, NJ 08540
referred to as the Grantor,

AND Barsky Enterprises, LLC, a New Jersey limited liability company

whose address is 152 Witherspoon Street, Princeton, NJ 08540
referred to as the Grantee.

The words "Grantor" and "Grantee" shall mean all Grantors and all Grantees listed above.

Transfer of Ownership. The Grantor grants and conveys (transfers ownership of) the property described below to the Grantee. This transfer is made for the sum of One Million Six Hundred Thousand Dollars and No/100 ---------- ($1,600,000.00). The Grantor acknowledges receipt of this money.

Tax Map Reference. (N.J.S.A. 46:15-2.1) Municipality of Princeton

Block No. 30.03 Old Lots No. 62, 63; New Lot No. 100 Account No.

Property. The property consists of the land and all the buildings and structures on the land in Princeton, County of Mercer, and State of New Jersey. The legal description is:

See Schedule A attached hereto.

The property is commonly known as 86-88 Spruce Street, Princeton, NJ 08540.

BEING THE SAME PREMISES conveyed to 86 Spruce Street, LLC by Deed from Rajka B.V. Scott, unmarried, dated September 20, 2003 and recorded January 10, 2004 in the Mercer County Clerk's Office in Deed Book 4660, Page 294.

Subject to easements and restrictions of record.

Promises by the Grantor. The Grantor promises that the Grantor has done no act to encumber the property. This promise is called a "covenant as to Grantor's acts" (N.J.S.A. 46:4-6). This promise means that the Grantor has not allowed anyone else to obtain any legal rights which affect the property (such as by making a mortgage or allowing a judgment to be entered against the Grantor).

Signatures. The Grantor signs this Deed as of the date at the top of the first page.

Witnessed By:

86 Spruce Street, LLC

By: Rajka B. V. Scott, Managing Member

STATE OF NEW JERSEY
COUNTY OF MERCER

I CERTIFY that on August 23, 2016, Rajka B. V. Scott, Managing Member, personally came before me and acknowledged under oath, to my satisfaction, that this person (or if more than one, each person):

(a) is named in and personally signed the attached document as Sole Member of 86 Spruce Street, LLC, a New Jersey limited liability company;
(b) signed, sealed and delivered this Deed as his act and deed on behalf of said Limited Liability Company;
(c) made this Deed for $1,600,000.00 as the full and actual consideration paid or to be paid for the transfer of title, as defined in N.J.S.A. 46:15-5.

Nancy F. Goldstein
Attorney at Law State of New Jersey

TITLE INSURANCE COMMITMENT

Issued by **Title Village Title Agency, LLC**

AGENT FOR OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY

Commitment Number: TVTA2511

SCHEDULE C

LEGAL DESCRIPTION

ALL that certain lot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Municipality of Princeton, in the County of Mercer, State of NJ:

Beginning at a point on the northern right-of-way line of Spruce Street (50' r/w), said point being the point of beginning as stated in deed book 4660, page 295 and being 280.00 feet northeast of the eastern right-of-way line of Chestnut Street and from said Point Of Beginning running thence along the western line of lot 61, n/f Schultz:

1. North 15 degrees 01 minutes 50 seconds West, 226.18 feet to a point in the southern line of lot 99 , n/f Borough of Princeton, thence along said line
2. North 61 degrees 07 minutes 40 seconds East, 82.30 feet to a point in the western line of lot 64, n/f 92-94 Spruce LLC, thence along said line
3. South 14 degrees 59 minutes 30 seconds East, 239.48 feet to a point in the northern right of way line of Spruce Street, thence along said right of way
4. South 70 degrees 23 minutes 10 seconds West, 80.00 feet to the POINT AND PLACE OF BEGINNING.

All in accordance with a plan entitled "Boundary & Topographic Survey" prepared by VS Land Data, dated July 1, 2016. VS Project #16047, John J. Hanlon, Professional Land Surveyor NJ LIcense No. 37589, NJCOA # 24GA28113500.

FOR INFORMATION PURPOSES ONLY: BEING known as 86 Spruce Street, Tax Lot 100 (New), formerly known as Tax Lots 62 and 63, Tax Block 30.03 on the Official Tax Map of Princeton, NJ.

RTF-1EE (Rev. 12/09)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY

AFFIDAVIT OF CONSIDERATION FOR USE BY BUYER

(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)

PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM BEFORE COMPLETING THIS AFFIDAVIT

STATE OF NEW JERSEY

} SS. County Municipal Code 1114

COUNTY Mercer

MUNICIPALITY OF PROPERTY LOCATION Princeton

FOR RECORDER'S USE ONLY	
Consideration	$
RTF paid by buyer	$
Date	By

(1) PARTY OR LEGAL REPRESENTATIVE *(See Instructions #3 and #4 on reverse side)*

X X X – X X – X 1 5 6
Last three digits in grantee's Social Security Number

Deponent, Richard L. Eland (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the Officer of the Title Company (Grantee, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated May 8, 2017 transferring real property identified as Block number 30.03 Lot number NEW LOT 100 (formerly 62 & 63) located at 86-88 Spruce Street, Princeton (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $ 1,600,000.00 *(See Instructions #1, #5, and #11 on reverse side)*

Entire consideration is in excess of $1,000,000:

PROPERTY CLASSIFICATION CHECKED OR CIRCLED BELOW IS TAKEN FROM OFFICIAL ASSESSMENT LIST (A PUBLIC RECORD) OF MUNICIPALITY WHERE THE REAL PROPERTY IS LOCATED IN THE YEAR OF TRANSFER. REFER TO N.J.A.C. 18:12-2.2 ET SEQ.

(A) Grantee required to remit the 1% fee, complete (A) by checking off appropriate box or boxes below.

- ☐ Class 2 - Residential
- ☐ Class 3A - Farm property (Regular) and any other real property transferred to same grantee in conjunction with transfer of Class 3A property
- ☐ Class 4A - Commercial properties (if checked, calculation in (E) required below)
- ☒ Cooperative unit (four families or less) (See C. 46:8D-3.) Cooperative units are Class 4C.

(B) Grantee is not required to remit 1% fee (one or more of following classes being conveyed), complete (B) by checking off appropriate box or boxes below.

☐ Property class. **Circle applicable class or classes**: 1 3B 4B 4C 15

Property classes: 1-Vacant Land;3B- Farm property (Qualified);4B- Industrial properties;4C- Apartments;15: Public Property, etc. (N.J.A.C. 18:12-2.2 et seq.)

- ☐ Exempt organization determined by federal Internal Revenue Service/Internal Revenue Code of 1986, 26 U.S.C. s. 501.
- ☐ Incidental to corporate merger or acquisition; equalized assessed valuation less than 20% of total value of all assets exchanged in merger or acquisition. If checked, calculation in (E) required and **MUST ATTACH COMPLETED RTF-4**.

(C) When grantee transfers properties involving block(s) and lot(s) of two or more classes in one deed, one or more subject to the 1% fee (A), with one or more than one not subject to the 1% fee (B), pursuant to N.J.S.A. 46:15-7.2, complete (C) by checking off appropriate box or boxes and (D).

☐ Property class. **Circle applicable class or classes**: 1 2 3B 4A 4B 4C 15

(D) EQUALIZED VALUE CALCULATION FOR ALL PROPERTIES CONVEYED, WHETHER THE 1% FEE APPLIES OR DOES NOT APPLY

Total Assessed Valuation + Director's Ratio = Equalized Valuation

Property Class 3A $____ + ____% = $____

Property Class 3B $____ + ____% = $____

Property Class 3A $____ + ____% = $____

Property Class 3B $____ + ____% = $____

(E) REQUIRED EQUALIZED VALUE CALCULATION FOR ALL CLASS 4A (COMMERCIAL) PROPERTY TRANSACTIONS: (See Instructions #6 and #7 on reverse side)

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$____ ÷ ____% = $____

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed valuation. If Director's Ratio is equal to or exceeds 100%, the assessed valuation will be equal to the equalized value.

(3) TOTAL EXEMPTION FROM FEE *(See Instruction #8 on reverse side)*

Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through Chapter 33, P.L. 2006, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.

(4) Deponent makes **Affidavit of Consideration for Use by Buyer** to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith pursuant to the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me this 8 day of May, 2017.

Signature of Deponent

168 Franklin Corner Rd., Lawrenceville, NJ 08648
Deponent Address

Barsky Enterprises LLC
Grantee Name

152 Witherspoons St. Princeton, NJ
Grantee Address at Time of Sale

Title Village Title Agency, LLC/Richard Eland
Name/Company of Settlement Officer

DIANE BENACK MULLIN
Notary Public
STATE OF NEW JERSEY
My Commission Expires: **March 28, 2022**

County recording officers: forward one copy of each RTF-1EE to:

STATE OF NJ - DIVISION OF TAXATION
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

FOR OFFICIAL USE ONLY			
Instrument Number		County	
Deed Number		Book	Page
Deed Dated		Date Recorded	

The Director, Division of Taxation, Department of the Treasury has prescribed this form, as required by law. It may not be altered or amended without prior approval of the Director. For further information on the Realty Transfer Fee or to print a copy of this Affidavit or any other relevant forms, visit: **www.state.nj.us/treasury/taxation/lpt/localtax.shtml**.

RTF-1EE (Rev. 12/09)
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COUNTY Mercer — County Municipal Code 1114

MUNICIPALITY OF PROPERTY LOCATION Princeton

FOR RECORDER'S USE ONLY	
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Subscribed and sworn to before me this 8 day of MAY, 2017.

DIANE BENACK MULLIN
Notary Public
STATE OF NEW JERSEY
My Commission Expires: March 28, 2022

Signature of Deponent

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Barsky Enterprises LLC
Grantee Name

152 Witherspoons St. Princeton, NJ
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GIT/REP-3
(9-2015)

State of New Jersey

SELLER'S RESIDENCY CERTIFICATION/EXEMPTION

(Please Print or Type)

SELLER'S INFORMATION

Name(s)

86 Spruce Street, LLC

Current Street Address

20 Nassau Street, Suite 129

City, Town, Post Office Box	State	Zip Code
Princeton	NJ	08542

PROPERTY INFORMATION

Block(s)	Lot(s)	Qualifier
30.03	62, 63	

Street Address
86-88 Spruce Street

City, Town, Post Office Box	State	Zip Code
Princeton	NJ	08540

Seller's Percentage of Ownership	Total Consideration	Owner's Share of Consideration	Closing Date
100%	$1,600,000.00	$1,600,00.00	

SELLER'S ASSURANCES (Check the Appropriate Box) (Boxes 2 through 14 apply to Residents and Nonresidents)

1. ☐ Seller is a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to the New Jersey Gross Income Tax Act, will file a resident gross income tax return, and will pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property sold or transferred is used exclusively as a principal residence as defined in 26 U.S. Code section 121.
3. ☐ Seller is a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor, or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☒ Seller is not an individual, estate, or trust and is not required to make an estimated gross income tax payment.
6. ☐ The total consideration for the property is $1,000 or less so the seller is not required to make an estimated income tax payment.
7. ☐ The gain from the sale is not recognized for federal income tax purposes under 26 U.S. Code section 721, 1031, or 1033 (CIRCLE THE APPLICABLE SECTION). If the indicated section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey income tax return for the year of the sale and report the recognized gain.
   ☐ Seller did not receive non-like kind property.
8. ☐ The real property is being transferred by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this State.
9. ☐ The real property being sold is subject to a short sale instituted by the mortgagee, whereby the seller agreed not to receive any proceeds from the sale and the mortgagee will receive all proceeds paying off an agreed amount of the mortgage.
10. ☐ The deed is dated prior to August 1, 2004, and was not previously recorded.
11. ☐ The real property is being transferred under a relocation company transaction where a trustee of the relocation company buys the property from the seller and then sells the house to a third party buyer for the same price.
12. ☐ The real property is being transferred between spouses or incident to a divorce decree or property settlement agreement under 26 U.S. Code section 1041.
13. ☐ The property transferred is a cemetery plot.
14. ☐ The seller is not receiving net proceeds from the sale. Net proceeds from the sale means the net amount due to the seller on the settlement sheet.

SELLER'S DECLARATION

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein may be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box, ☐ I certify that a Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

8/23/2016
Date

Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

Date

Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

Dated: 5/8/2017

86 Sprue Street, LLC

Grantor,

TO

~~RB Homes, Inc.~~
Barsky Enterprises, LLC
Grantee.

Record and return to:

Title Village Title Agency, LLC
168 Franklin Corner Road
Building 2
Lawrenceville, NJ 08648